

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kevin O'Connor (Int)	Team: Team # 2	CCRB Case #: 201400334	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday 01/11/2014 7:30 PM	18 Mo. SOL 07-11-2015	Location of Incident: 90 East 149th Street	Precinct: 40
Date/Time CV Reported Sun, 01/12/2014 7:36 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 01/12/2014 7:36 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)		

Subject Officer(s)	Shield	TaxID	Command
1. POF Doreyda Munoz	17104	952039	040 PCT
2. POM Saul Quiles	05235	952136	040 PCT
3. SGT Tameika Goode	01640	934950	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Doreyda Munoz	Abuse of Authority: PO Doreyda Munoz frisked § 87(2)(b)	A . Substantiated
B . POM Saul Quiles	Abuse of Authority: PO Saul Quiles searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Unsubstantiated
C . POF Doreyda Munoz	Abuse of Authority: PO Doreyda Munoz searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On January 12, 2014, § 87(2)(b) filed a complaint with the CCRB through the on-line website (encl. 4A-D).

On January 11, 2014, at approximately 7:30 p.m., § 87(2)(b) was the passenger of a vehicle driven by her boyfriend, § 87(2)(b) that was pulled over in front of 90 East 149th Street in the Bronx by PO Saul Quiles and PO Doreyda Munoz. The following allegations resulted:

- **Allegation A- Abuse of Authority: PO Doreyda Munoz frisked § 87(2)(b)**
§ 87(2)(g)
Therefore, it is recommended that **Allegation A** be closed as **substantiated**.
- **Allegation B- Abuse of Authority: PO Saul Quiles searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.**
- **Allegation C-Abuse of Authority: PO Doreyda Munoz searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.**
§ 87(2)(g)
It is therefore recommended that **Allegations B and C** be closed as **unsubstantiated**.
- § 87(4-b), § 87(2)(g)
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§ 87(2)(b) rejected mediation.

Results of Investigation

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) -old black woman, § 87(2)(b), with brown hair and brown eyes.
- § 87(2)(b)

Civilian Statement

§ 87(2)(b) was interviewed at the CCRB on January 31, 2014 (encl.7A-I). Her testimony was consistent with a telephone statement she provided on January 22, 2014 (encl.6A).

On January 11, 2014, at approximately 7:30 p.m., § 87(2)(b) and § 87(2)(b) were driving eastbound along East 149th Street in the Bronx and were on their way to pick up a pizza for their children. After driving for approximately 30 minutes, a marked patrol vehicle stopped at a red light behind § 87(2)(b)'s vehicle, a 2010 gray Jetta Volkswagen, at the intersection of East 149th Street and Third Avenue in the Bronx. § 87(2)(b)'s vehicle did not have any tints on its windows and the vehicle had temporary New Jersey plates as § 87(2)(b) had just bought the vehicle on December 31, 2013.

§ 87(2)(b) continued to drive along East 149th Street, a two lane street in both directions, as the patrol vehicle followed behind. As § 87(2)(b) drove in the right lane, a vehicle was attempting to make a right turn and § 87(2)(b) signaled to his left and moved over to the left

lane to pass the vehicle. On the next block, a vehicle was attempting to make a left turn and § 87(2)(b) § 87(2)(b) signaled to the right and went into the right lane to pass the vehicle. § 87(2)(b) did not switch lanes at any other point and was not speeding at any point while driving on the date of incident.

After driving for approximately five or six blocks, § 87(2)(b)'s vehicle was pulled over in front of 90 East 149th Street. Upon being pulled over, two uniformed officers approached the vehicle. PO1, identified via investigation as PO Saul Quiles and described as a Hispanic man, approximately 40 years old, 5'11" tall, with a heavyset build, wearing glasses and an NYPD jacket, approached the driver's side of the vehicle and PO2, identified via investigation as PO Doreyda Munoz and described as a Hispanic woman, approximately 28-30 years old, 5'5" tall, with blonde or brown hair in a ponytail and brown eyes, approached the passenger's side.

PO Quiles asked § 87(2)(b) for his license and registration and § 87(2)(b) provided him with the documentation. PO Quiles informed § 87(2)(b) that he had been switching in and out of lanes and was driving recklessly. PO Quiles and PO Munoz then returned to their vehicle. § 87(2)(b) § 87(2)(b) took out her cell phone so she could record her and § 87(2)(b)'s interaction with the officers once they returned. Approximately six minutes later, PO Quiles and PO Munoz returned to § 87(2)(b)'s vehicle and § 87(2)(b) began to record the interaction. PO Quiles asked § 87(2)(b) to step out of the vehicle and he complied.

PO Quiles told § 87(2)(b) that the vehicle they were driving may be stolen as its registration was not in the system and said, 'The sergeant is in the car. Do everything you're supposed to do and you'll be out of here.' PO Munoz told § 87(2)(b) that it was not smart to be recording and § 87(2)(b) asked why, but was ignored. PO Munoz asked § 87(2)(b) § 87(2)(b) to step out of the vehicle and upon § 87(2)(b) stepping out, she frisked § 87(2)(b) chest and front and back pants pockets. PO Quiles and § 87(2)(b) began to have a conversation, but § 87(2)(b) could not hear what they were saying.

§ 87(2)(b) and § 87(2)(b) were escorted to the back of § 87(2)(b)'s vehicle, directly in the center area of the trunk and were facing the marked patrol vehicle. PO Quiles asked how many times § 87(2)(b)'s vehicle's license plates were changed. § 87(2)(b) stated that if the plates were illegitimate or the vehicle was stolen, they did not know and that it would have been the fault of the dealer from where they purchased the car from. PO Quiles asked § 87(2)(b) and § 87(2)(b) to tell the truth and § 87(2)(b) reiterated that they were.

PO Quiles said aloud that he smelled marijuana and he and PO Munoz subsequently entered § 87(2)(b)'s vehicle. PO Quiles entered from the driver's side and PO Munoz entered from the passenger's side. § 87(2)(b) quickly looked back and could see through the rear mirror of the vehicle that PO Munoz was searching the glove compartment but did not see any additional search of any area of the vehicle before turning around. Neither § 87(2)(b) nor § 87(2)(b) had used or were in possession of any narcotics or alcohol on the date of incident.

Approximately five minutes later, PO Quiles and PO Munoz exited the vehicle and told § 87(2)(b) § 87(2)(b) and § 87(2)(b) to return to their vehicle. Prior to entering their vehicle, PO3, identified via investigation as Sgt. Tameika Goode and described as a black woman, approximately 6' tall, exited the patrol vehicle and told § 87(2)(b) and § 87(2)(b) that since the vehicle was not registered it could have been stolen. § 87(2)(b) and § 87(2)(b) were both issued summonses before returning to their vehicle and left with no further interaction with any officer. The incident lasted approximately 30 minutes. § 87(2)(b) received a summons for § 87(2)(b) and § 87(2)(b) received a summons for § 87(2)(b).

Attempts to Contact Civilians

On January 15, 2014, a call was placed to § 87(2)(b) and a message was received that the number dialed was not accepting incoming phone calls. On January 23, 2014, a call was placed to § 87(2)(b) and an interview was scheduled for January 28, 2014. On January 29, 2014, § 87(2)(b) rescheduled § 87(2)(b)'s appointment for January 31, 2014. On January 31, 2014, § 87(2)(b) did not appear for his scheduled appointment and did not call to cancel or reschedule.

On March 13, 2014 and March 17, 2014, two calls were placed to § 87(2)(b) and a message that the number dialed was not in service was received on each occasion. Please call letters mailed to § 87(2)(b) on January 15, 2014 and March 13, 2014 were not returned to the CCRB. On March 17, 2014, a please call email was sent to § 87(2)(b) and no correspondence was received in return. A Lexis Nexis search confirmed § 87(2)(b)'s address and no phone numbers were provided. A NYC Department of Correction search confirmed that § 87(2)(b) is not currently incarcerated. To date, § 87(2)(b) has not made any attempt to contact the CCRB to pursue his complaint.

NYPD Statements:

Subject Officer: POLICE OFFICER SAUL QUILES

- § 87(2)(b) -old Hispanic man, § 87(2)(b) with black hair and brown eyes.
- PO Quiles worked from 2:30 p.m. until 11:05 p.m. on January 11, 2014. He was assigned as the Sergeant's Operator and worked with PO Doreyda Munoz and Sgt. Tameika Goode. They were assigned to marked patrol vehicle number 4676 and were in uniform.

Memo Book

At 7:30 p.m., § 87(2)(b) was issued a summons for § 87(2)(b) after being observed switching lanes at least three times without signaling, causing other cars to swerve in an effort to avoid being struck.

Summons #§ 87(2)(b)

§ 87(2)(a) 160.50

CCRB Testimony

PO Quiles was interviewed at the CCRB on May 7, 2014.

On January 11, 2014, at approximately 7:30 p.m., PO Quiles observed § 87(2)(b)'s vehicle weaving in and out of traffic, switching lanes approximately three times, without signaling along East 149th Street in the Bronx. § 87(2)(b) appeared to be going over the speed limit as he was passing cars but PO Quiles was not sure if § 87(2)(b) was speeding. PO Quiles observed § 87(2)(b) for one to two blocks before he decided to pull § 87(2)(b) over. PO Quiles had not received any information over the radio regarding a stolen vehicle and did not suspect the vehicle § 87(2)(b) was driving as stolen.

Upon stopping the vehicle, PO Quiles approached the driver's side and PO Munoz approached the passenger side as Sgt. Goode remained in the vehicle. PO Quiles smelled a strong odor of marijuana coming from § 87(2)(b)'s rolled down window upon approaching the vehicle. PO Quiles did not know if PO Munoz smelled marijuana. PO Quiles asked § 87(2)(b) for his license and registration and § 87(2)(b) who was belligerent, repeatedly interrupted PO Quiles. PO Quiles and PO Munoz issued § 87(2)(b) "a few" commands to stop disrupting PO Quiles but she did not comply. PO Quiles did not recall giving any commands for

§ 87(2)(b) to put her phone away or if § 87(2)(b) took her phone out. § 87(2)(b) reached into her purse, located on her lap, several times as she was yelling and interrupting PO Quiles.

§ 87(2)(b) was ordered out of the vehicle by PO Quiles and § 87(2)(b) was ordered out of the vehicle by PO Munoz. PO Quiles did not recall which individual was ordered out of the vehicle first. Upon exiting the vehicle, § 87(2)(b) was frisked by PO Munoz for safety reasons, as § 87(2)(b) had been “acting crazy.” A crowd of less than five people gathered around the scene in response to § 87(2)(b) behavior and individuals were recording the incident from their cell phones in a nearby bodega. PO Quiles did not recall what § 87(2)(b) was wearing or if she had any bulges in her clothing. § 87(2)(b)

§ 87(2)(b) did not make any additional movements inside or outside the vehicle. PO Quiles did not see the entirety of § 87(2)(b) interaction with PO Munoz and did not recall seeing any other physical contact made.

§ 87(2)(b) and § 87(2)(b) were both escorted to the back of the vehicle, where § 87(2)(b) informed PO Quiles that he had smoked marijuana earlier in the day, but did not specify at what time he did so. PO Quiles then searched the center console, front seat and backseat of § 87(2)(b)'s vehicle as he had smelled marijuana and was checking for weapons. PO Quiles was inside the vehicle for approximately a minute and a half and did not search any compartments inside the vehicle. PO Quiles was not instructed to search the vehicle by Sgt. Goode. PO Quiles did not recall if PO Munoz assisted in searching the vehicle or if § 87(2)(b) purse was searched during the vehicle search.

PO Quiles recalled that Sgt. Goode exited her vehicle during the incident, but did not recall if she had any interaction with § 87(2)(b) or § 87(2)(b) or at what point she exited the vehicle. PO Quiles did not recall if PO Munoz prepared a Stop, Question and Frisk Report in regard to the incident. § 87(2)(b) was issued a summons for § 87(2)(b) by PO Quiles and PO Munoz issued § 87(2)(b) a summons for § 87(2)(b) before both officers left the scene.

Subject Officer: POLICE OFFICER DOREYDA MUNOZ

- § 87(2)(b) -old Hispanic woman, § 87(2)(b), with brown hair and brown eyes.
- PO Munoz worked 2:30 p.m. until 11:05 p.m. on January 11, 2014. She was assigned as the Sergeant's Operator and worked with PO Saul Quiles and Sgt. Tameika Goode. They were assigned to marked patrol vehicle number 4676 and were in uniform.

Memo Book

At 7:30 p.m., § 87(2)(b) was issued a summons for § 87(2)(b) at East 149th Street and Tinton Avenue.

Summons #§ 87(2)(b)

§ 87(2)(a) 160.50

CCRB Testimony

PO Doreyda Munoz was interviewed at the CCRB on May 7, 2014. Her statement was consistent with PO Quiles' regarding the initial observation of § 87(2)(b) switching lanes several times without signaling and the subsequent car stop.

Upon stopping the vehicle, PO Munoz approached the passenger side of the vehicle and PO Quiles approached the driver's side. PO Munoz did not recall if the windows of § 87(2)(b)'s vehicle were rolled down, but recalled smelling marijuana immediately upon approaching the

vehicle. PO Munoz did not recall if there was any discussion regarding the marijuana or if § 87(2)(b) or § 87(2)(b) admitted to having been in possession of or using marijuana.

As PO Quiles was speaking with § 87(2)(b) § 87(2)(b) became very aggressive and uncooperative, and would not let PO Quiles speak with § 87(2)(b) § 87(2)(b) raised her hands up and down and continually interrupted PO Quiles. PO Munoz did not recall any additional movements made by § 87(2)(b) inside the vehicle. PO Munoz did not recall where § 87(2)(b) purse was and did not recall seeing her reach into her purse. PO Munoz instructed § 87(2)(b) approximately five times not to interrupt PO Quiles and to allow him to conduct a car stop but § 87(2)(b) refused. PO Munoz did not recall if § 87(2)(b) behavior caused a crowd to gather around the scene.

It was determined that § 87(2)(b) was to be issued a summons for § 87(2)(b) and she was asked to step out of the vehicle by PO Munoz. PO Munoz did not recall if § 87(2)(b) came out of the vehicle voluntarily or if she was removed from the vehicle. Upon exiting the vehicle, PO Munoz noticed a bulge on § 87(2)(b) waistband and patted down her waist area as she had been moving around a lot in the vehicle. PO Munoz could not describe the bulge and did not recall if § 87(2)(b) made any movements towards the bulge. PO Munoz determined that the bulge was not a weapon and assumed that it was a cell phone.

PO Munoz did not recall a search of the vehicle by herself or PO Quiles and did not recall Sgt. Goode issuing any instructions for them to search the vehicle. PO Munoz did not recall any additional physical contact made with § 87(2)(b) and did not recall how long she was at the scene. When provided a copy of § 87(2)(b) summons, which noted that she refused lawful orders, PO Munoz did not recall what the lawful orders were. PO Munoz did not recall if Sgt. Goode exited the vehicle during the incident.

Subject Officer: SERGEANT TAMEIKA GOODE

- § 87(2)(b) -old black woman, § 87(2)(b), with black hair and brown eyes.
- Sgt. Goode worked from 2:30 p.m. until 11:27 p.m. on January 11, 2014. She was assigned as the Violence Reduction Patrol Sergeant and worked with PO Quiles and PO Munoz. They were assigned to marked patrol vehicle number 4676 and were in uniform.

Memo Book (Encl. 14A-B)

Sgt. Goode did not have any memo book entries pertaining to this incident.

CCRB Testimony (Encl. 15A-C)

Sgt. Goode was interviewed at the CCRB on May 30, 2014. Her statement was consistent with PO Quiles and PO Munoz's testimony regarding the stop of § 87(2)(b)'s vehicle.

Sgt. Goode remained in her vehicle, which was parked approximately five feet behind § 87(2)(b)'s vehicle. Sgt. Goode could see PO Quiles and PO Munoz speaking with the vehicle's occupants, but could not see how the occupants were responding. Sgt. Goode did not see anyone ordered out of the vehicle and recalled that § 87(2)(b) had a calm demeanor. § 87(2)(b)'s vehicle had temporary New Jersey paper plates, but Sgt. Goode did not recall if there was any concern that the vehicle was stolen.

Sgt. Goode did not observe § 87(2)(b) or § 87(2)(b) refuse any lawful orders. Sgt. Goode did not observe PO Munoz frisk § 87(2)(b). Neither PO Quiles nor PO Munoz indicated to Sgt. Goode that they smelled marijuana and Sgt. Goode did not smell marijuana. Sgt. Goode did not instruct PO Quiles or PO Munoz to search § 87(2)(b)'s vehicle and did not observe a search of the vehicle. Sgt. Goode did not observe a crowd gather at the scene and stated that § 87(2)(b) behavior did not cause a disturbance.

PO Quiles and PO Munoz acknowledged interacting with § 87(2)(b) and § 87(2)(b)

Investigative Findings and Recommendations

Allegation A-Abuse of Authority: PO Doreyda Munoz frisked § 87(2)(b)

It is undisputed that PO Munoz frisked § 87(2)(b). § 87(2)(b) alleged that after she was asked to step out of the vehicle by PO Munoz, PO Munoz frisked § 87(2)(b) chest and front and back pants pockets. PO Munoz stated that § 87(2)(b) moved her hands around in the vehicle and was constantly interrupting PO Quiles, who was conducting a car stop. PO Munoz asked § 87(2)(b) to step out of the vehicle and immediately frisked her waist area as she had noticed a bulge on § 87(2)(b) waistband.

PO Munoz could not describe the bulge and did not recall if § 87(2)(b) made any movements towards the bulge. PO Munoz claimed that she frisked § 87(2)(b) for two reasons: moving around a lot inside § 87(2)(b)'s vehicle and the presence of a bulge. PO Munoz did not observe § 87(2)(b) reach for any objects inside her purse or make any additional movements inside the vehicle aside from moving her hands around. PO Munoz determined that the bulge was not a weapon and assumed that it was a cell phone. PO Munoz did not prepare a Stop, Question and Frisk Report as she had issued § 87(2)(b) a criminal summons for § 87(2)(b).

PO Quiles stated that § 87(2)(b) as she was yelling and repeatedly interrupting him, reached into her purse several times. Once she was ordered out of the vehicle, PO Munoz frisked § 87(2)(b) for safety reasons as § 87(2)(b) had been "acting crazy." PO Quiles did not recall seeing § 87(2)(b) make any additional movements inside or outside the vehicle and did not observe any bulges on her person. Sgt. Goode did not observe PO Munoz frisk § 87(2)(b).

A frisk is permitted when the officer reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed. People v. DeBour 40 N.Y. 2d 210 (1976) (encl. 1A-K). The observation of an amorphous bulge does not, in the absence of other circumstantial factors, produce reasonable suspicion of a crime. People v. Barretto 161 A.D. 2d 305 (1990-1st Dept.) (encl. 1L-N).

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation B-Abuse of Authority: PO Saul Quiles searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation C-Abuse of Authority: PO Doreyda Munoz searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that PO Quiles searched § 87(2)(b)'s vehicle. § 87(2)(b) alleged that after she and § 87(2)(b) were escorted to the back of the vehicle, PO Quiles said aloud that he smelled marijuana. PO Quiles and PO Munoz subsequently entered and searched the vehicle, with § 87(2)(b) observing PO Munoz searching the glove compartment. § 87(2)(b) denied that either she or § 87(2)(b) were in possession of any narcotics.

PO Quiles stated that immediately upon approaching the vehicle, he could smell a strong odor of marijuana emanating from § 87(2)(b)'s vehicle. § 87(2)(b) informed PO Quiles that he had smoked marijuana earlier that day, but did not specify at which time he did so. PO Quiles then searched the center console, front seat and backseat of § 87(2)(b)'s vehicle as he had smelled marijuana and was also checking for weapons. PO Quiles did not recall if PO Munoz had assisted him in searching the vehicle. PO Munoz recalled smelling marijuana upon approaching the vehicle, but did not recall a search of the vehicle by herself or PO Quiles. Sgt. Goode did not smell marijuana and was not informed by PO Quiles or PO Munoz that they had smelled marijuana coming from the car.

§ 87(2)(g)

It is therefore recommended that **Allegations B and C** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date